

2. The petitioner was appointed October 9, 2024, but failed to obtain her Letters for a year. Her petition for final distribution would have been due December 19, 2025 if she had obtained her letters timely. The petitioner shall explain her failure to file timely.

3. The petitioner requests that the estate be distributed to the heirs, but the decedent's will which was admitted to probate directed that her estate be distributed to her trust. The petitioner shall explain why the court should disregard the decedent's clear intentions.

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IN RE THE ESTATE OF RI'CHARD L. DU BOIS, DECEASED
PR26-00290

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act (filed by Richard Pinckney)

Petition for Probate of Will and for Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act (filed by Rodney Dubois)

PREGRANT ORDER

This matter was continued from June 29, 2026 to allow the competing petitions to be heard concurrently. The court has reviewed the Proof of Service filed by Rodney Dubois which resolved the outstanding issue with his petition.

The court on its own motion continues this hearing to September 24, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the parties shall resolve the following issues with their respective pleadings:

As to the Petition filed by Richard Pinckney:

1. The petition states that the petitioner is the father of the decedent. The petitioner shall provide either a copy of the decedent's birth certificate or a court order establishing his parentage of the decedent.

2. The decedent's will nominated his brother as the executor and named him as the sole heir. The petitioner shall explain why the court should disregard the decedent's expressed wishes.

As to the Petition filed by Rodney Dubois:

All issues resolved.
